



PROPERTY MANAGEMENT AGREEMENT FOR COMMERCIAL/OFFICE BUILDINGS

TEMPLATE — replace every bracketed [] field before circulating or executing. Use this template for commercial office buildings and mixed office/retail properties, including multi-entity ownership structures — see Exhibit A for the property schedule.

THIS AGREEMENT (the “Agreement”), made as of this [DAY] day of [MONTH], [YEAR] (the “Effective Date”), by and between [CLIENT ENTITY NAME(S)], each a New York corporation (individually and collectively, the “Client”), and CAMELOT PROPERTY MANAGEMENT SERVICES CORP., a New York corporation, having its principal office at 57 West 57th Street, Suite 410, New York, NY 10019 (the “Agent,” and together with the Client, hereinafter referred to as the “Parties,” and each as a “Party”).

WHEREAS, Client operates out of a principal office located at [CLIENT OFFICE ADDRESS]; and

WHEREAS, Client owns certain commercial office and/or retail properties, as more particularly described on Exhibit A attached hereto (each, a “Property” and collectively, the “Properties”); and

WHEREAS, Client desires to engage the Agent to perform the Services and the Additional Services (as each are defined herein), in connection with the Properties, and the Agent desires to be engaged to perform such Services and Additional Services.

NOW, THEREFORE, for good and valuable consideration, the sufficiency of which is hereby recognized and acknowledged, the Parties agree as follows:

ARTICLE I — Definitions

“Additional Services” shall mean Lease Services, Transfer Services, Broker Financing Services, Non-Broker Financing Services, Hearing Services, Audit Services, Pre-Occupation Services, Emergency Services, and Extraordinary Project Services.

“Client Account” shall mean a bank account, in a bank whose deposits are insured by the Federal Deposit Insurance Corporation and in a manner to indicate the custodial nature thereof, for the deposit of monies of Client, with authority granted to Agent to withdraw therefrom for any payments to be made by the Agent to discharge any liabilities or obligations incurred pursuant to this Agreement, and for the payment of Agent’s Compensation, all of which payments shall be subject to the limitations in this Agreement.

“Emergency Services” shall mean any Additional Services that, by reasonable determination of the Agent, must be performed immediately to maintain the continuing occupancy and operation of any of the Properties or any Unit.

“Employees” shall mean all persons necessary to be employed, or otherwise engaged, in order to properly maintain and operate the Properties.

“Lease Rates” shall mean the annual rate of rent charged to a Unit Holder.



“Office Unit” or “Office Units” shall mean any or all of the 456 Office Units and the 343 Office Units”.

“Reimbursable Expenses” shall mean all out of pocket expenses assumed and paid by the Agent in connection with the Services, the Supplemental Services, and the Additional Services, including but not limited to messenger service expenses, postage expenses, facsimile transmission expenses, photocopying expenses, printing and scanning expenses, on-line payment expenses, and work order supervision expenses.

“Retail Unit” or “Retail Units” shall mean any or all of the 454 Retail Unit, the 456 Retail Unit, and the 343 Retail Unit.

“Services” shall mean the duties of the Agent arising under this Agreement, as set forth in Article VI, but not including the Additional Services.

“Union Contract” shall mean any contract setting forth obligations of the Client to any union representing the Employees.

“Units” shall mean the Restaurant, the 454 Retail Unit, the 456 Units and the 343 Units.

“Unit Holders” shall mean the tenants and sub-tenants of Units (“Unit Holders”)

ARTICLE II — Term

The initial period of this Agreement shall commence on the Effective Date and conclude on the __ year anniversary of the Effective Date (the “Initial Period”). Upon the conclusion of the Initial Period, this Agreement shall automatically renew for subsequent __ year periods (each a “Renewal Period,” and together with the Initial Period, the “Periods,” and the Initial Period as it may be extended, hereinafter referred to as the “Term”), unless either Party notifies the other Party at least sixty (60) days prior to the end of any Period of its desire for the Agreement not to be renewed for a Renewal Period.

ARTICLE III — Exclusive Agency

During the Term, absent prior written consent of the Agent, no party except for the Agent shall perform any of the Services or the Additional Services. Agent shall be entitled to place a small sign outside of each of the Properties, signaling that the Agent manages the Property (the “Agent Sign”). The Agent Sign is subject to the prior written approval of the Client, at the sole and absolute discretion of the Client.

ARTICLE IV — Termination

1. A breaching Party shall have five (5) business days from its receipt of notice from the non-breaching Party of such breach (the “Cure Period”) to cure such breach. If the breaching Party fails to cure such breach during the Cure Period, the non-breaching Party may terminate this Agreement immediately.

1. If at any time either Party (i) is enjoined, prohibited or otherwise unable to perform its obligations under this Agreement; (ii) voluntarily files or is the subject of a petition commencing a case under any chapter of Title 11 of the United States Code; (iii) makes a general assignment for the benefit of its creditors; (iv) admits in writing its



inability to pay its debts as they mature; (v) files an application or consents to the appointment of, or there is appointed, any receiver, or permanent or interim trustee, for that Party or any of its subsidiaries, as the case may be, or for all or any portion of its property, including without limitation the appointment or authorization of a trustee, receiver or agent under applicable law or under contract to take charge of its property or for the purpose of enforcing a lien against such property or for the purpose of general administration of such property for the benefit of its creditors; (vi) files a petition seeking a reorganization of its financial affairs or to take advantage of any bankruptcy, reorganization, insolvency, readjustment of debt, dissolution or liquidation law or statute, or files an answer admitting the material of a petition filed against it in any proceeding under any such law or statute; (vii) takes any corporate action for the purposes of any of the foregoing; or (viii) fails or refuses to take any action or pay any sum, the failure to do so which would subject the other Party to any civil or criminal imprisonment, penalty, fine or forfeiture (an "Unable Party"), the other Party may terminate this Agreement immediately upon notice to the Unable Party.

1. Either Party may terminate this Agreement upon not less than (i) ninety (90) days' notice during the Initial Period, or, (ii) sixty (60) days' notice during any Renewal Period.

1. Upon termination of this Agreement, the Parties shall account to each other with respect to all uncompleted business, and the Agent shall promptly and without charges deliver to the Client or its designee all funds and other property belonging to the Client, including but not limited to all of the Client's (with the exception of an amount deemed reasonable and necessary by Agent to pay then accrued and payable expenses permissible under this agreement), trust accounts, investments, canceled checks, bank statements and other bank records and all rent rolls, bills, ledgers, correspondence, leases, subleases, corporate files, books and records and other instruments relating to the Property, in the possession of the Agent. No new business between the Parties may be requested, assumed, or directed upon termination except for transitional procedures and transfer of Property files to appointees. Notwithstanding the foregoing, from the time either Party provides notice of termination to the other party, or otherwise provides notice of its desire not to renew the Agreement for an additional Period, until the termination or expiration of the Term, the Agent may continue to render the Services, the Additional Services, or Emergency Services, in accordance with the terms of this Agreement.

1. Should this Agreement be terminated pursuant to the terms set forth above, Articles V, IX, XIII, XIV, XVI.

1. In the event of termination of this Agreement, Agent will incur certain costs that are difficult to estimate. The Parties hereby agree that, in consideration of these costs, upon termination, Agent will be entitled to retain all of the Services Compensation for the month already paid, and, if such Services Compensation has not already been paid by Client, such Services Compensation will nonetheless be due and payable immediately, for the month during which the termination occurred.

ARTICLE V — Compensation

1. Payment for Services. As consideration for the performance of the Services, Client shall pay to Agent, during the Term, [MANAGEMENT FEE PERCENTAGE]% of the total rent collected by the Client from the Property tenants, whether collected by Client directly or by Agent on behalf of Client, but in no instance less than [MINIMUM MONTHLY FEE IN WORDS] dollars (\$[MINIMUM MONTHLY FEE AMOUNT]) per month (the "Services



Compensation”). Agent shall submit an invoice to the Client within not less than ten (10) business days during of the end of each month during the Term for any Services Compensation due to Agent in connection with Property rent collected by Agent on Client’s behalf. Upon receipt of such invoice, Client shall revise such invoice to include any Services Compensation due to Agent from Property rent collected by Client directly. Services Compensation shall become due and payable upon Agent’s receipt of such Invoice.

1. Payment for Additional Services. As consideration for the performance of the Additional Services, Client shall pay to Agent, during the Term, the fees set forth in Article VII, below (the “Additional Services Compensation,” and together with the Services Compensation, hereinafter referred to as the “Compensation”). Agent shall deliver Client invoices for Additional Services Compensation from time to time, at the discretion of the Agent, but in no instance less than once per calendar quarter.

1. Payment Instructions. All Compensation due to the Agent pursuant to this Agreement shall be paid within five (5) business days of the later of (i) the date such Compensation becomes due and payable, and (ii) the date on which Agent provides Client with an invoice for any due and payable, or to be due and payable, Compensation (the “Payment Instructions”).

1. Start-Up Fees. In addition to the Compensation the Client shall pay to the Agent a one-time start-up fee equal to [START-UP FEE IN WORDS] dollars (\$[START-UP FEE AMOUNT]), within not less than five (5) business days of the Effective Date. The start-up fee is to be utilized by the Agent to cover the Agent’s expenses including: collection and organization of virtual and physical Property files, mailer announcements to Property residents and Property Vendors, setting up bank accounts, and delivering city agency and public notices.

1. Compensation Deductions. On the first day of each month during the Term, the Agent may withdraw from the Client Accounts, an amount up to but not exceeding the Compensation due to the Client hereunder for the prior month (the “Compensation Deduction”), subject to Agent’s compliance with the Payment Instructions. To the extent that any such Compensation Deduction is less than the then due and payable Compensation (a “Compensation Deficiency”), the Client shall pay to the Agent an amount equal to the Compensation Deficiency subject to the Payment Instructions.

ARTICLE VI — Agent’s Duties (the “Services”)

1. As consideration for the Compensation, during the Term the Agent shall perform the following Services.

1. Regular Repairs and Maintenance. Agent shall cause the property to be maintained in such condition as may be deemed advisable by the Client, at the Client’s expense, from the Client Accounts, including maintaining the cleanliness of the interior and exterior of the Properties, maintaining operability and efficiency of the Properties’ electrical, plumbing, and steam fitting systems, their masonry, elevators and décor, and performing such other tasks as necessary to the continued functionality, operability and efficiency of the Properties, subject to the terms of this Agreement. Any repairs or alterations arising under this Paragraph 1(a) involving an expenditure in excess of Two Thousand Five Hundred dollars (\$2,500) shall be made only with the prior written consent of the Client.



1. Inspection Visits. Agent shall make such visits to and inspections of the Properties as Agent may deem necessary, but in no instance more than ___ per month, per Property, or more than ___ in six (6) month period, per Property.

1. Violations. Agent shall recommend and, with the approval of the Client, cause all such acts and things to be done in or about the Properties as shall be necessary or desirable to comply with any and all orders or violations affecting the Properties, whether placed thereon by any federal, state or municipal authority having jurisdiction there over, and orders of the New York Board of Fire Underwriters, the New York Fire Insurance Exchange or other similar body. If failure to promptly comply with any such order or violation would or might expose the Client or the Agent to any civil or criminal imprisonment, penalty, fine or forfeiture, or expose persons or property to injury or damage, the remediation or mitigation of such violation shall be considered an Emergency Service, subject to the terms of this Agreement governing rendering of Emergency Services. In case of Agent's receipt of any notice of any violation, Agent shall promptly notify Client of the existence of such violation. Costs arising from any violation shall be paid from the Client's Account, not subject to the Payment Instructions.

1. Utilities/Service Contracts. Agent shall enter into, maintain, or otherwise renew contracts for electricity, gas, steam, air-conditioning, water treatment, elevator, telephone, window cleaning, rubbish removal, fuel oil, security, vermin extermination, architects' and engineers' services required for the operation of and for the planning and supervision of alteration and/or improvements made or proposed to be made to the Properties, and other services or such of them as shall be advisable, but any such contract having a term longer than two (2) years or requiring cumulative annual payments in excess of Ten Thousand Dollars (\$10,000.00) must be pre-authorized in writing by the Client. Expenses arising under this Paragraph 1(d) shall be paid from the Client Accounts, not subject to the Payment Instructions.

1. Supplies. Agent shall purchase all supplies necessary to properly maintain and operate the Properties ("Supplies"), at the lowest possible rate, at the terms most advantageous to the Client, and of quality acceptable to the Agent, to be paid from the Client Accounts, not subject to the Payment Instructions. All contracts and purchases of Supplies shall be made in the name of Client, and Agent is hereby so authorized to make such purchases. Any credit, refunds, discounts or commissions paid to the Agent in connection with Agent's purchase of the Supplies shall be the property of, and assigned by Agent to the Client.

1. Corporate Expenses/Payments. Agent shall review and verify all bills received for services, work and supplies ordered in connection with the Services and the Additional Services; and pay or cause to be paid from the Client Accounts, but not subject to the Payment Instructions, all such bills, union obligations, mortgage and other interest, mortgage and other amortization, water charges, sewer rent, assessments, and real estate taxes in connection with the Properties as and when the same shall become due and payable.

1. Collection of Rents/ Maintenance Fees /Legal Proceedings. Agent shall bill or cause to be billed Unit Holders for common charges (if applicable), rent, additional rents and other charges arising in connection with Unit Holders' possession of Units, and shall use its best efforts to collect such rents, additional rents and other charges, including by, when so instructed by Client or Client's attorneys, serving notices upon Unit Holders to quit Units and surrender rent payments. When directed by Client upon commercially reasonable notice, and on Client's behalf, Agent may (a) retain counsel and institute proceedings in the name of Client to collect rents, additional rents and other charges which may at any time be or become due, as aforesaid, from any Unit Holder



in respect of space at the Properties; (b) institute summary proceedings to recover possession from any Unit Holder, and employ and pay special counsel, if necessary, for any such purposes, but notwithstanding the foregoing, no suit or summary proceedings shall be instituted absent Client's prior written authorization; and (c) bill or cause to be billed, Unit Holders for common charges, assessments, rent and other charges, including real estate taxes not otherwise directly billed, operating escalations, CPI (Consumer Price Index) increases, water charges, etc., as calculated by Agent's or Client's accounting professionals. Agent shall cooperate with Client's attorneys to file appropriate liens and serve upon Unit Holders, notices to quit and surrender space(s) occupied by them and otherwise cooperate with Client's attorneys in all suits, actions and proceedings to collect common charges, rent and other charges which may at any time be or become due to Client from any Unit Holder, and/or, to recover possession of any Unit. Expenses of Agent's arising under this Paragraph 1(g), except for Reimbursable Expenses, shall be paid from the Client Accounts.

1. Board and Unit Holder Meetings. When requested by Client and upon commercially reasonable notice, Agent shall cause a representative of Agent to attend monthly meetings of the Board of Managers of the Client (the "Board") and one (1) annual meeting, per Property, of Unit Holders. Whenever attendance by representatives of the Agent is desired at such meetings, it is understood that every reasonable effort will be made on the part of the Board to schedule such meetings to begin at a sufficiently early hour so that they can be adjourned not later than 9:00 p.m., in view of the fact that these meetings generally take place at the end of a business day. Client agrees that the cost of transportation to and from meetings shall be considered Reimbursable Expenses.

1. Storage. Agent will Provide storage for Client's Property files at a secure off-premises facility at Client's expense, to be paid from the Client Accounts, not subject to the Payment Instructions.

1. Unit Holder Complaints. Agent shall consider and, when reasonable, attend to the complaints of Unit Holders. If the Agent shall deem any such complaint unreasonable, it shall in writing advise Client of Unit Holder's complaint and the reason such complaint is unreasonable.

1. Reports. Agent shall on a monthly basis render or cause to be rendered to Client's President and/or Accountant, as direct by Client, statements for the preceding month of collections and disbursements arising in connection with Agent's performance of the Services and Additional Services; cash in all Client Accounts in Agent's control reconciled to the previous month's report; and, accounts payable including the amount of each and to whom due and a schedule of payments due Client and in arrears on the date of the report showing by whom owed and in what amount. The copy of the statement provided to Client will include copies of all paid bills and vouchers supporting all disbursements. Delivery of such reports will be provided no later than the 20th of each month.

1. Books and Records. Agent shall set up and keep in good order separate, corporate books of accounts, check books, and other Client records (other than books of account maintained by Client's accountants), and maintain orderly files containing rent records, insurance policies, leases and subleases, correspondence, receipted bills and vouchers, cancelled checks, bank reconciliations and statements and all other documents and papers pertaining to the Properties or the operation thereof, to which Agent has access in the ordinary course of its business. In addition, Agent shall:



1. furnish such records as Client's accountants may require, upon commercially reasonable notice, regarding the preparation and filing of Client's federal, state, city, transfer and any other income or other tax returns required by any governmental authority;

1. cause to be prepared and filed all necessary forms for unemployment insurance, withholding and social security taxes and all other tax, union and other forms relating to employment of Employees and maintenance and operation of the Properties required by any federal, state or municipal authority; or required pursuant to any Union Contract;

1. cooperate with Client's accountants with regard to the annual audit of the books of account of Client, including the annual report of the operations of Client for the year then ended; and

1. cooperate with Client's attorneys in the preparation of an application for correction of the assessed valuation to be filed with the Tax Commission of the City of New York.

1. Emergency Contact. Agent shall maintain a 24 hour telephone number for reporting of and prompt response to notice of emergency conditions at the Properties.

1. Insurance.

2. Agent shall secure for the Client, at the Client's expense to be paid from the Client Accounts, not subject to the Payment Instructions, the proper insurance coverage of the Properties, their Employees, and Unit Holders (the "Client Insurance Policies"), as requested in writing by the Client, including but not limited to fire, multi-peril, renter's, plate glass, boiler, water damage, general liability, workers' compensation, employer's liability, disability insurance policies, and other insurance policies. Such insurance policies shall be procured from an insurance broker of good standing.

1. Agent agrees to carry its own liability insurance (with limits acceptable to the Client, in the Client's reasonable judgment, but in no event less than \$1,000,000.00 for each accident or occurrence), worker's compensation and employer's liability insurance, and such other insurance as may be necessary for the protection of the interest of Client and Agent in connection with the performance of the Services and the Additional Services ("Agent Insurance Policies"). Client shall pay an annual fee of four hundred fifty dollars (\$450) to Agent to be used toward the premium from the Agent Insurance Policies, due and payable on the first business day of each year during the Term, subject to the Payment Instructions. In each such Agent Insurance Policy, except the worker's compensation policy, Agent will name Client as an insured party and will, prior to the commencement of each such Agent Insurance Policy, deliver a copy of such Agent Insurance Policy to Client or a certificate evidencing the same. It is expressly understood and agreed that the provisions of this paragraph shall survive the termination of this Agreement, but this shall not be construed to mean that the Agent's liability does not survive as to other provisions of this Agreement or that Agent's liability for actions undertaken during this Agreement do not survive where applicable.

1. Client shall carry its own employee dishonesty and defalcation insurance policies in an amount not less than \$1,000,000.00



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1. Separate and apart from the maintenance of Client Insurance Policies, the Client is obligated to acquire and maintain the following minimum insurance contracts:
 2. Directors & Officers Liability contract in the amount of no less than \$1 Million. This policy must contain a Managing Agent rider/provision;
 1. Umbrella Liability Insurance contract with a minimum limit of \$10 Million. The Umbrella contract must also grant excess coverages over the primary Directors and Officers Liability limit(s);
 1. Employee Dishonesty Coverage, including Managing Agent Rider/Provision as well as Computer Fraud and Fund Transfer Fraud coverages; and
 1. Statutory NYS Workers Compensation and Disability Benefits coverages.
 2. Move-In & Move-Out. Agent will, with the cooperation of the Client, provide written notice to all Unit Holders moving into or out of any of the Properties of all procedures and fees to which such Unit Holders may from time to time be subject in connection with such Transition.

ARTICLE VII — THE ADDITIONAL SERVICES

1. Additional Services Process.

1. In the event the Agent determines Additional Services to be necessary, and such Additional Services were not otherwise requested by the Client, the Agent will provide the Client written notice of the need for such Additional Services (the “Additional Services Notice”), which Additional Services Notice shall describe in reasonable detail the Additional Services the Agent proposes to render.

1. If Client fails to object to the performance of the Additional Services subject to an Additional Services Notice within five (5) business days of its receipt of an Additional Services Notice (the “Additional Services Rejection Period”), or otherwise approves or requests any Additional Services, then the Agent will perform such Additional Services at the corresponding Compensation rates set forth herein. Approval of certain Additional Services (such as, Lease Services) shall constitute approval of continued performance by Agent of such Additional Services, unless such approval is later revoked in writing by Client.

1. Subject to the termination provisions of Article IV, Paragraph (7), if Client objects to the performance of the Additional Services within the Additional Services Rejection Period, then the Agent will exercise its best efforts to reach an agreement with the Client during the Additional Services Rejection Period as to the Additional Services to be performed (the “Additional Services Negotiation”).

1. If the Additional Services Negotiation fails to, within the Additional Services Rejection Period, result in an agreement between the Parties as to the Additional Services to be performed, Agent may at its sole discretion, but shall not be obligated to, immediately terminate this Agreement upon written notice to the Client.

1. Agent may perform, or choose not to perform, any Additional Services requested in writing by Client, without repercussion of any type, or impact on the enforceability of this Agreement.



1. Additional Services Performance.

1. Lease Services. During the Term, the Agent shall have exclusive right to render leasing agent services for all Units (the "Lease Services"), and may use all commercially reasonable means to render such Lease Services. Lease agreements shall be provided by the Agent unless otherwise notified by the Client. No other party may perform any Lease Service during the Term unless retained by and at the discretion of Agent, or otherwise upon the prior written consent of Agent, not to be unreasonably withheld. Agent shall bill and collect from all Unit Holders all rent payments, any additional rents, and any other charges as required under their respective lease agreements. Client shall pay to the Agent (i) eight percent (the "Initial Period Lease Fee") of the Unit Holder's Lease Rate during the Initial Period and (ii) [] percent ([]% (the "Renewal Period Lease Fee") of the Unit Holder's Lease Rate during any Renewal Period. Decisions as to Lease Rates shall be made by the Client, but under no circumstance will Lease Rates decrease by more than three percent (3%), from year to year, absent prior written approval of the Client. For any renewal of a Unit lease by a Unit Holder, the Client shall pay to the Agent fifteen percent of the difference between (1) annual rent to be charged to the Unit Holder during the Unit Holder's renewed term (the "Holder Renewal Term"), and (2) the annual rent the Unit Holder was obligated to pay during the Unit Holder's rental term immediately prior to the Holder Renewal Term (the "Renewal Lease Fee, and together with the Initial Period Lease Fee and the Renewal Period Lease Fee, the "Lease Fees").

In the event a sub-lease of a leased Unit results in a higher monthly Lease Rate being due to the Client, in addition to the Lease Fee, the Client shall pay the Agent fifteen percent (15%) of the difference between (i) the annual Lease Rate charged the Unit Holder, and (ii) the annual rent charged the sub-tenant Unit Holder. Lease Fees due under this Article VII, Paragraph 2(a), shall be due and payable to Agent upon completion of the first calendar month of the underlying's Unit Holder's occupation of the leased Unit. For the avoidance of doubt by way of example, if the monthly rent charged to a tenant is one thousand dollars (\$1,000), and the tenant's lease term begins January 1, 2018, then a Lease Fee equal to (z) fifteen percent (15%) of (y) one thousand dollars (\$1,000), multiplied by twelve (12), shall become due and payable to Agent on February 1, 2018, and shall be paid in accordance with the Payment Instructions.

- For any transfer of leasehold of any Unit, including in the case of an eviction, which title transfer process is managed by the Agent (a "Transfer Service"), the Client shall pay to the Agent a transfer fee equal to five hundred dollars (\$500) (the "Transfer Fee"), which Transfer Fee shall become due and payable to Agent on the first day of the month after the month during which such Transfer Service was rendered, and shall be paid in accordance with the Payment Instructions.

- For any building mortgage, refinancing, credit line or other financing of any Property (a "Financing") for which the Agent serves as the broker (a "Broker Service"), the Client shall pay to the Agent a fee equal to (i) one percent (1%) of the first \$1,000,000 of such Financing, plus (ii) one half of one percent (.5%) of any amount of the Financing above \$1,000,000 (a "Broker Financing Service Fee"), which Financing Service Fee shall become due and payable to Agent on the first day of the month after the month during which funds underlying the Financing were first received by the Client, and shall be paid in accordance with the Payment Instructions. For any Financing for which the Agent did not render Broker Service but otherwise provided support, for example by providing documentation necessary to process such Financing (a "Non-Broker Service"), the Client shall pay to the Agent a fee equal to one third percent (.33%) of the entire amount of the Financing (a "Non-Broker Financing



Service Fee”), which Non-Broker Financing Service Fee shall become due and payable to Agent on the first day of the month after the month during which funds underlying the Financing were first received by the Client, and shall be paid in accordance with the Payment Instructions.

- For any civil, criminal, supreme court, union, arbitration, mediation, environmental or other hearing (each a “Hearing”) at which Agent’s personnel, or Employee(s) appears on behalf of Client (each a “Hearing Service”), the Client shall pay to the Agent a fee equal to one hundred dollars (\$100) per hour, for each hour that any of Agent’s personnel, or Employee(s) spends attending and traveling to and from such Hearing (a “Hearing Fee”), which Hearing Fee shall become due and payable to Agent on the first day of the month after any month during which any Hearing Service was rendered by the Agent, and shall be paid in accordance with the Payment Instructions. Other costs incurred in connection with any Hearing Service shall be paid from the Client Accounts, or as otherwise arranged by Client.

- For any audit of any of the Properties organized, authorized or commenced by the Client, managed by the Agent, its personnel, or Employee(s) (an “Audit Service”), the Client shall pay to the Agent a fee equal to one hundred fifty dollars (\$150) per hour, for each hour that any of Agent’s personnel, or Employee(s), spends rendering such Audit Service (an “Audit Fee”), which Audit Fee shall become due and payable to Agent on the first day of each month after any month during which any Audit Service was rendered by Agent, and shall be paid in accordance with the Payment Instructions.

- For any services rendered by Agent prior to the occupancy of any of the Properties, or of any Unit at any of the Properties (“Pre-Occupation Services”), the Client shall pay to the Agent a fee equal to [\$_____] per hour, for each hour that any of Agent’s personnel, or Employee(s), spends managing such Pre-Occupation Services (“Pre-Occupation Fee”), which Pre-Occupation Fee shall become due and payable to Agent on the first day of each month after any month during which any Pre-Occupation Service was rendered by Agent, and shall be paid in accordance with the Payment Instructions.

- Emergency Services.

1. Agent shall have at least one Agent personnel, or Employee, or more as reasonably necessary, at the Property where Emergency Services are being performed, during the rendering of any Emergency Service.

1. For each hour of Emergency Services rendered by Agent’s personnel, the Client shall pay to the Agent a fee of two hundred dollars (\$200) (the “Emergency Service Fee”), which Emergency Service Fee shall be payable immediately upon rendering, subject to the Payment Instructions, from the Client Accounts to the extent not covered by insurance.

1. Agent shall implement a system for deploying Emergency Services by maintaining a list of contractors, who shall be contacted first to perform such repairs. Agent shall solicit standard hourly rates and unit prices from such Emergency Services contractors, including but not limited to plumbers, electricians, and HVAC technicians, where such contractors’ work is not covered by a warranty or service contract with a contractor previously retained by the Client.



1. Agent shall cease performance of any Emergency Services (as defined herein) upon written notice from Client to cease performance of any such Emergency Services, however, upon receipt of such notice, Agent may at its sole discretion, but shall not be obligated to, terminate this Agreement immediately.

- Should any event have the effect of requiring the immediate or otherwise short-notice commencement of a construction project at any of the Properties (an “Extraordinary Project”), Agent shall manage the Extraordinary Project (the “Extraordinary Project Services”) for which the Client shall pay to the Agent a fee equal to seven percent (7%) of the cost to Client of such Emergency Project, for time during which the Agent renders the Extraordinary Project Service (the “Extraordinary Project Fee”), which Extraordinary Project Fee shall be payable due and payable to Agent on the first day of the month after each month during which any Extraordinary Project Services were rendered by Agent, and shall be paid in accordance with the Payment Instructions. Extraordinary Projects shall be paid for from the Client Accounts to the extent not covered by Client’s insurance. For the purposes of this Agreement Extraordinary Project Services shall be considered Emergency Services.

ARTICLE VIII — Additional Fees and Services

1. Non-Client Fees. Separate and apart from the Compensation, Agent shall be entitled to perform the following Supplemental Services, and collect the associated fees.

1. In connection with any application for lease interest in any Unit reviewed and processed by Agent (an “Application Review”), Agent may bill to and collect from such applicant a one-time fee of Two Hundred Fifty Dollars (\$250) (the “Application Fee”), payable as agreed upon by such party and agent.

1. In connection with the review and processing (an “Alteration Review,” and together with Application Review, hereinafter referred to as the “Supplemental Services”) of an application by a Unit Holder for alterations to a Unit (an “Alteration”), Agent may bill to and collect from such Unit Holder a one-time fee of Five Hundred Dollars (\$500) (the “Alteration Fee”), payable as agreed upon by such Unit Holder and Agent.

1. Unless otherwise agreed to in writing between the Parties, the Agent shall have the sole right to perform and approve of all Supplemental Services, and Client shall have no right or claim to any Application Fees and Alteration Fees. If, notwithstanding the foregoing, Client engaged a third party without the written consent of Agent to perform the Supplemental Services, Client shall pay to Agent the Application Fees and Alteration Fees that Agent would otherwise have been entitled to had Client acted in accordance with the terms of this Article VIII.

1. Reimbursable Expenses.

1. Agent shall be reimbursed for all Reimbursable Expenses. Reimbursable Expenses shall become due and payable on the first date of the month following the month during which they were incurred, and shall payable in accordance with the Payment Instructions.

1. Additional Client Fees.

1. At the request of the Client, subject to the Payment Instructions, the Agent will perform the following services in addition to the Services, the Additional Services and the Supplemental Services:



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1. process, print mail and file tax forms 1098 and 1099, for which the Client will reimburse the Agent twenty five dollars (\$25) per form filed, as a Reimbursement Expense, due and payable upon filing;
 1. prepare and file the Real Property Income and Expense (RPIE) form or the Real Property Income and Expense-Exception (RPIE-EX) form and/or tax certiorari application, for which the Client will reimburse the Agent four hundred dollars (\$400), as a Reimbursement Expense, due and payable upon filing;
 1. process the applications for obtaining benefits under the Co-op/Condo Tax Abatement program, STAR and Veteran rebate program, and administering the distribution of rebates, for which the Client will reimburse the Agent forty dollars (\$40), as a Reimbursement Expense, per unit per application, due and payable upon filing; and
 1. Establish Client Accounts. For the maintenance thereof, Client will reimburse the Agent two hundred fifty dollars (\$250) per month, as a Reimbursement Expense, such fee being due and payable within five (5) business of the end of the month during which such fee was incurred
 1. Payroll Expenses. The Client will assume full responsibility for payroll service fees ("Payroll Fees") for Employees, whether (i) paid directly through the Client's payroll service Company, or (ii) paid by Agent in which case Agent shall be fully reimbursed by Client for such Payroll Fees, as a Reimbursement Expense, which reimbursement shall be due upon payment by the Agent, and payable in accordance with the Payment Instructions.
 1. Client Responsible for Fees. Notwithstanding anything to the contrary in this Agreement, any Bank lockbox fees/on-line payment fees, or other fees incurred in connection with the Client's title to the Properties are to be paid directly from the Client's operating account, and in no event shall Agent be obliged to perform services other than the Services, unless otherwise agreed in writing by the Parties.

ARTICLE IX — Indemnification

1. Indemnification. Client will indemnify the Agent against and hold the Agent harmless from (a) any liability, damages, costs and expenses (including reasonable attorneys' fees) sustained or incurred for injury to any person or property in, about and in connection with the Properties, from any cause whatsoever, unless such injury shall be proven to be caused by the Agent's own negligence, willful misconduct, or material breach of its obligations hereunder, and (b) any liability, damages, penalties, costs and expenses, statutory or otherwise, for all acts performed by the Agent pursuant to this Agreement or the instructions of Client, provided, in each instance in which Agent seeks indemnification, that the Agent advises Client of its receipt of information concerning any such injury and the amount of any such liability, damages, penalties, costs and expenses, cooperates fully with Client and its attorneys at all stages of any such claims, actions and proceedings and furnishes to Client and its attorneys upon receipt all papers, documents and other evidence, and such witnesses under its control as shall be related to the matter for which Agent seeks indemnification or as requested by Client or its attorneys.
1. Indemnity Bond. The Agent shall, if requested by Client, at Client's expense, procure a fidelity bond issued by a bonding insurance or casualty company authorized to do business in the State of New York, pursuant to which



Client will be held harmless by the surety in an amount to be determined by Client, in its sole discretion, from any loss of money or other personal property belonging to Client or for which Client is legally liable, caused by larceny, embezzlement, forgery, misappropriation, wrongful abstraction or any dishonest or fraudulent acts committed on or after the date hereof, by the Agent or its managers, officers or employees. Agent represents that Agent has in effect an insurance policy covering employee dishonesty and defalcation in the amount of \$1,000,000.00 and that Client would be covered under such policy in the event of any defalcation by Agent's officers or employees. Agent shall provide Client with a copy of such policy and have Client named as an additional insured under such policy.

ARTICLE X — Authority

1. Client authorizes the Agent, for Client's account and on its behalf, to perform any act or do anything necessary or desirable in order to perform the Services, Additional Services, Supplemental Services, and those services described in Article VIII, Paragraph 3, as set forth and subject to the limitations contained herein, as agent of Client and all obligations or expenses incurred there under (for which the Agent is not compensated as provided in Article IV hereof) shall be at the expense of Client except those overhead expenses of Agent's not otherwise allocated hereunder.

1. Any payments made by the Agent hereunder shall be made from such funds as the Agent may from time to time hold for the account of the Client or as may be provided by Client from Client Accounts. Agent shall not be obligated to make any advance to or for the account of Client or to pay any amount except out of funds held or provided as aforesaid, nor shall the Agent be obligated to incur any liability or obligation unless Client shall furnish Agent with the necessary funds for the discharge thereof. If Agent shall voluntarily advance for Client's account any amount which Agent is authorized to spend hereunder for the payment of any obligation or necessary expense connected with the maintenance or operation of the Properties or otherwise, Client shall reimburse the Agent therefore on demand, or as otherwise set forth herein.

ARTICLE XI — Bank Accounts

1. Agent shall establish and maintain Client Accounts, as necessary for the performance of its obligations hereunder, or as otherwise set forth herein.

ARTICLE XII — Licenses

1. The Agent represents to Client that it is duly licensed by the Department of State of the State of New York as a real estate broker and also by the Department of Law of said state as a broker-dealer insofar as broker-dealer licensing is required in order to enable it to lawfully perform its duties hereunder.

ARTICLE XIII — Miscellaneous

1. All notices, requests, consents, approvals, demands or other communications required or permitted to be given under this Agreement shall be effective only if in writing sent to the address of the intended recipient first



hereinabove written and either (i) served personally, (ii) sent by nationally recognized overnight courier service (e.g., USPS Express Mail, Airborne/DHL, UPS Next Day Service), or (iii) sent by certified or registered mail. Either party may designate a substitute address or addresses by notice to the other party given in accordance with this Article. Notwithstanding the foregoing, any notice of change of address shall not be effective until actually received.

1. Agent affirms that Agent has no relationship or affiliation with Client.

ARTICLE XIV — Governing Law.

This Agreement shall be governed by and construed according to the laws of the State of New York, without giving effect to any conflict-of-law rules.

ARTICLE XV — Entire Agreement

This Agreement may not be changed orally, shall bind and apply to any successor or either party hereto, and may not be assigned by either party hereto.

ARTICLE XVI — Independent Contractor

1. Agent's relation to Client under this Agreement is that of an independent contractor. Nothing in this Agreement is intended or should be construed to create a partnership, joint venture or employer-employee relationship between Client and any of Agent's employees or agents. Except as set forth herein, Agent is not the agent of Client and is not authorized, and must not represent to any third party that it is authorized, to make any commitment or otherwise to act on behalf of Client. Without limiting the generality of the foregoing: (a) neither Agent nor any of its employees or agents is entitled to or eligible for any benefits that Client may make available to its employees; (b) Client will not withhold or make payments for social security, make unemployment insurance or disability insurance contributions, or obtain workers' compensation insurance on behalf of Contractor or any of its employees or agents; and (c) Agent is solely responsible for filing all tax returns and submitting all payments as required by any federal, state, local, or foreign tax authority arising from the payment of fees to Agent under this Agreement, and agrees to do so in a timely manner.

[Signature Page Follows]

IN WITNESS WHEREOF, the parties hereto have executed this Agreement the day and year first above written.

CLIENT: [CLIENT ENTITY NAME]

By: _____

Name: _____

Its: _____

AGENT: Camelot Property Management Services Corp.

Date: _____



CAMELOT REALTY GROUP

REAL ESTATE · PROPERTY MGMT · BROKERAGE · INVESTMENT SERVICES

New Yorkers Working for New Yorkers EST. 2006

By: _____

Its: Founder/President



EXHIBIT A — PROPERTY SCHEDULE

Owning Entity	Property Address	Unit Type	Unit Count
[FILL IN]	[FILL IN]	[FILL IN]	[FILL IN]
[FILL IN]	[FILL IN]	[FILL IN]	[FILL IN]
[FILL IN]	[FILL IN]	[FILL IN]	[FILL IN]